

The Guardianship and the Universal House of Justice

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THE UNIVERSAL HOUSE OF JUSTICE

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The Friends in Iran

Dear Bahá'í Friends,

We have received a letter from a believer in Iran with questions about the Guardianship and the Universal House of Justice. We appreciate that firmness in the Covenant is among the distinctive characteristics of the believers in that land, who are informed of the principles and essential facts pertaining to the succession of authority in the Cause. Nevertheless, none among them should hesitate to seek clarification of matters about which they have questions, for the enemies of the Faith are tireless in their attempts to sow seeds of confusion and doubt. Moreover, it is beneficial, in view of the beloved Master's exhortations to us all to be ever-vigilant concerning matters of protection, for the friends to review the relevant essentials from time to time. We have therefore decided to provide you with the following comments....

Questions concerning the Guardianship and the Universal House of Justice can be resolved through careful study of the writings of Bahá'u'lláh, 'Abdu'l-Bahá and Shoghi Effendi and the elucidations of the House of Justice, which, 'Abdu'l-Bahá states, will "deliberate upon all problems which have caused difference, questions that are obscure and matters that are not expressly recorded in the Book. Whatsoever they decide," He assures the friends, "has the same effect as the Text itself."

Prior to the passing of 'Abdu'l-Bahá in 1921, the provisions He had put in place in His Will and Testament to safeguard the Faith and ensure its steady advancement into the future were generally unknown. The believers anticipated a day when the Universal House of Justice would be established since it had been specifically mentioned in the Sacred Texts. There was, however, no definite understanding that there would be a Guardian. Indeed, Shoghi Effendi later indicated that he had no foreknowledge of the position to which he would be called. At most, he had reportedly thought the Will and Testament might charge him, as the eldest grandson of 'Abdu'l-Bahá, with responsibility for arranging for the election of the House of Justice. Only after the reading of the Will did the institution of the Guardianship become widely known, and the Bahá'í community worldwide acknowledged Shoghi Effendi as the Head of the Faith to whom all must turn.

An attentive reading of 'Abdu'l-Bahá's Will makes it clear that He did not indicate a predestined outcome but did provide for a number of circumstances which, depending on future conditions, might eventually confront the Faith. The second section of the Will, for instance, which refers only to the Universal House of Justice, with no mention of the Guardianship, was written at a time when His own life was in imminent danger and Shoghi Effendi was but a small boy. During that same period, 'Abdu'l-Bahá had made arrangements for the election of the Universal House of Justice to take place immediately, should the threat on His life materialize. Through the grace of God, the crisis passed, and it was ultimately left to Shoghi Effendi many years later, as Guardian and Head of the Faith, to determine the timing of the formation of the House of Justice. Early on he considered the possibility of holding the election soon after the passing of 'Abdu'l-Bahá, in which case the House of Justice and the Guardian would have functioned simultaneously. He determined, of course, that the foundations of the Administrative Order needed first to be firmly laid at the local and national levels, and it eventually transpired that the House of Justice was established several

years after his own passing. That the transition from the ministry of the Guardian to the election of the Universal House of Justice occurred with such relative ease can, itself, be attributed to the way certain provisions in the Will were formulated.

‘Abdu’l-Bahá’s Will and Testament clearly allows for the possibility of a successor to Shoghi Effendi, and in this light, we find statements written by him or on his behalf over the course of his thirty-six-year ministry that envision future Guardians. However, there are no assurances in the Writings that the line of Guardians would continue throughout the Dispensation; rather, the possibility is envisaged that such a line would come to an end. In this respect, Bahá’u’lláh states in the Kitáb-i-Aqdas:

Endowments dedicated to charity revert to God, the Revealer of Signs. None hath the right to dispose of them without leave from Him Who is the Dawning-place of Revelation. After Him, this authority shall pass to the Aghsán, and after them to the House of Justice—should it be established in the world by then—that they may use these endowments for the benefit of the Places which have been exalted in this Cause, and for whatsoever hath been enjoined upon them by Him Who is the God of might and power. Otherwise, the endowments shall revert to the people of Bahá who speak not except by His leave and judge not save in accordance with what God hath decreed in this Tablet—lo, they are the champions of victory betwixt heaven and earth—that they may use them in the manner that hath been laid down in the Book by God, the Mighty, the Bountiful.

The passing of Shoghi Effendi precipitated the situation described, in which the authority vested in the Aghsán—first in ‘Abdu’l-Bahá and then in Shoghi Effendi—ended before the House of Justice was established.

In His Will and Testament, ‘Abdu’l-Bahá specifies in the clearest terms the conditions according to which Shoghi Effendi was to have named his successor as Guardian:

O ye beloved of the Lord! It is incumbent upon the guardian of the Cause of God to appoint in his own life-time him that shall become his successor, that differences may not arise after his passing. He that is appointed must manifest in himself detachment from all worldly things, must be the essence of purity, must show in himself the fear of God, knowledge, wisdom and learning. Thus, should the first-born of the guardian of the Cause of God not manifest in himself the truth of the words:—“The child is the secret essence of its sire,” that is, should he not inherit of the spiritual within him (the guardian of the Cause of God) and his glorious lineage not be matched with a goodly character, then must he, (the guardian of the Cause of God) choose another branch to succeed him.

The Hands of the Cause of God must elect from their own number nine persons that shall at all times be occupied in the important services in the work of the guardian of the Cause of God. The election of these nine must be carried either unanimously or by majority from the company of the Hands of the Cause of God and these, whether unanimously or by a majority vote, must give their assent to the choice of the one whom the guardian of the Cause of God hath chosen as his successor. This assent must be given in such wise as the assenting and dissenting voices may not be distinguished (i.e., secret ballot).

The personal views of any individual regarding the above statement, no matter how learned, cannot compare with the Guardian’s infallible understanding of the passage. Shoghi Effendi, who faithfully adhered to the wishes of Bahá’u’lláh and ‘Abdu’l-Bahá throughout his ministry, would never have been careless in a matter so essential to the integrity of the Faith as the question of the appointment of his successor. It is unthinkable that he would appoint someone to succeed him who did not possess the qualifications laid down by ‘Abdu’l-Bahá in His Will. It is equally untenable to suggest that he would do so in a manner which deviated from the explicit requirements in that same document, which included the affirmation of his choice by nine designated Hands of the Cause of God, so that “differences” would “not arise after his passing.” How

perverse the suggestion of the violators of the Covenant that Shoghi Effendi would ignore the Master's instructions and make a veiled and indirect appointment of his successor! Rather should the fact that Shoghi Effendi did not name a successor be seen as a sign of his meticulous adherence to every word of 'Abdu'l-Bahá's Will and an indication of his conclusion that there was no qualified individual whom he could appoint.

Therefore, it should be clear to every steadfast follower of Bahá'u'lláh that the end of the line of Guardians was not the result of any decision or action taken by the Hands of the Cause of God following the sudden passing of Shoghi Effendi. The line was brought to a close when, compelled by existing circumstances and the strict provisions of the Will, Shoghi Effendi did not name a successor. To entertain the possibility that it may one day be re-established is futile. 'Abdu'l-Bahá wrote that "ere the expiration of a thousand years, no one has the right to utter a single word, even to claim the station of Guardianship." And in the same passage He exhorted the friends, "Should there be differences of opinion, the Supreme House of Justice would immediately resolve the problems." The Universal House of Justice, soon after its formation, stated that it "finds that there is no way to appoint or to legislate to make it possible to appoint a second Guardian to succeed Shoghi Effendi."

While the line of Guardians has ended, the Covenant is preserved. The vast body of interpretations of Shoghi Effendi informs the decisions of the Universal House of Justice as the Faith continues its onward march. The unity of the Faith is safeguarded, and the realization of Bahá'u'lláh's great purpose for humanity assured. "The Hand of Omnipotence hath established His Revelation upon an unassailable, an enduring foundation," Bahá'u'lláh has stated. "Storms of human strife are powerless to undermine its basis, nor will men's fanciful theories succeed in damaging its structure."

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With reference to the specific questions raised in the letter we have received, one concerns the meaning of the designation "Aghşán", as found in the Writings. While in some cases, as affirmed by the Guardian, the term applies specifically to Bahá'u'lláh's sons, at other times it is used more broadly to include His male descendants. For example, in His Will and Testament 'Abdu'l-Bahá refers to Shoghi Effendi as "the chosen branch" (Ghuşn-i-Mumtáz). The reference to Shoghi Effendi as Ghuşn here—the singular form of Aghşán—follows the usage of Bahá'u'lláh in relation to the titles He gave His sons, that is, the Most Great Branch, the Greater Branch, and the Purest Branch. A letter written on behalf of Shoghi Effendi explains that the word Aghşán "refers to Bahá'u'lláh's descendants"; another describes Hussein Rabbani, the Guardian's brother, as "the grandchild of the Master, an Afán and Aghşán mentioned in the Will and Testament of the Master." It is evident, then, that the designation Aghşán, or Ghuşn, includes Shoghi Effendi and the other male descendants of Bahá'u'lláh.

If, at any time, male descendants of Bahá'u'lláh appear who are faithful to the Covenant, it would nevertheless not be possible for any of them to occupy the office of Guardian, for, as already explained, in the absence of appointment by Shoghi Effendi, they cannot claim the station of Guardianship and there is no way for one to be named to it by an act of the House of Justice.

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Another query concerns the establishment of the Universal House of Justice. Specifically, the question has been asked whether the functioning of an "officially recognized" International Bahá'í Court in the Holy Land, mentioned by Shoghi Effendi, was an essential preliminary step in the evolution of the Universal House of Justice.

As you are no doubt aware, Shoghi Effendi explained that “Abdu’l-Bahá, Himself, in one of His earliest Tablets, contemplated the possibility of the formation of the Universal House of Justice in His own lifetime.” The Master described the requirements necessary for its formation, which did not include the establishment of a religious court:

The Supreme House of Justice should be elected according to the system followed in the election of the parliaments of Europe. And when the countries would be guided the Houses of Justice of the various countries would elect the Supreme House of Justice.

At whatever time all the beloved of God in each country appoint their delegates, and these in turn elect their representatives, and these representatives elect a body, that body shall be regarded as the Supreme House of Justice.

The establishment of that House is not dependent upon the conversion of all the nations of the world. For example, if conditions were favourable and no disturbances would be caused, the friends in Persia would elect their representatives, and likewise the friends in America, in India, and other areas would also elect their representatives, and these would elect a House of Justice. That House of Justice would be the Supreme House of Justice. That is all.

Over the thirty-six years of his ministry, as he guided the Bahá’í world, striving to lay the foundations of the Administrative Order, Shoghi Effendi outlined specific developmental steps to be taken, which were intended to lead to the eventual establishment of the Universal House of Justice. The accomplishment of some depended largely on the exertions of the believers themselves—an increase in the number of Local and National Spiritual Assemblies, the appointment of the International Bahá’í Council and its evolution into an elected body. Others, however, were subject to the forces operating in society and, no matter what the efforts made by the Bahá’í community, could not be accomplished.

In 1929, for instance, the Guardian stated, “given favorable circumstances, under which the Bahá’ís of Persia and of the adjoining countries under Soviet rule may be enabled to elect their national representatives ... the only remaining obstacle in the way of the definite formation of the International House of Justice will have been removed.” Later, following the expulsion of Bahá’ís from Russia by the authorities, a letter written on his behalf explained, “At the time he referred to Russia there were Bahá’ís there, now the Community has practically ceased to exist; therefore the formation of the International House of Justice cannot depend on a Russian National Spiritual Assembly.”

In the same way, goals were specified by Shoghi Effendi for the establishment of Bahá’í courts, including national courts in certain countries in Asia and, as a step in the development of the International Bahá’í Council, the precursor to the Universal House of Justice, a court in the Holy Land. Recognition by the Egyptian government of the National Spiritual Assembly as an independent Bahá’í court was sought as far back as 1929. Over time, changing conditions rendered the formation of such religious courts impossible. As the Hands of the Cause of God commented in 1959 in calling for the election of the International Bahá’í Council and the eventual establishment of the House of Justice,

We wish to assure the believers that every effort will be made to establish a Bahá’í Court in the Holy Land prior to the date set for this election. We should however bear in mind that the Guardian himself clearly indicated this goal, due to the strong trend towards the secularization of Religious Courts in this part of the world, might not be achieved.

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Yet another question that has been raised concerns the discharge by the Universal House of Justice of certain functions previously performed by the Guardian. With regard to Ḥuqúqu’lláh, ‘Abdu’l-Bahá has

explained that “Disposition of the Ḥuqúq, wholly or partly, is permissible, but this should be done by permission of the authority in the Cause to whom all must turn.” Likewise, the expulsion of Covenant-breakers is an obligation exercised by the Head of the Faith in the context of the duty to protect the Cause from those who would seek to undermine its unity. Shoghi Effendi, it is well known, was obliged to expel Covenant-breakers from the Faith at different points throughout his ministry, both before and after the appointment of the Hands of the Cause of God. This responsibility now falls on the Universal House of Justice, as the centre of authority to whom all must turn. The current procedures followed in this respect are outlined in the statement “The Institution of the Counsellors”.

In this connection it should be noted that after the passing of Shoghi Effendi, although overwhelmed with grief, the Bahá’í world maintained its unity during the tenuous period between his ministry and the election of the Universal House of Justice. The sole challenge to its integrity appeared some two years after his death when Charles Mason Remey, who was at that time one of the Hands of the Cause, laid claim to the Guardianship. As you are aware, Remey asserted that his appointment in 1951 as president of the nascent International Bahá’í Council meant that he should automatically assume the position of head of the Universal House of Justice and was, therefore, the second Guardian.

The absurdity of Remey’s claim is obvious and requires little elaboration. In 1957, he was among the Hands of the Cause who gathered in the Holy Land to consider what course of action should be taken following the unexpected passing of the Guardian. He personally affirmed that Shoghi Effendi had appointed no successor, signing a document issued unanimously by the Hands to this effect. As signatory to yet another such document, he agreed that the entire body of the Hands of the Cause would determine when and how the evolution of the International Bahá’í Council would culminate in the election of the House of Justice. For two years, as one of the nine Hands designated to serve in the Holy Land, he participated in the consultations that guided the development of the Bahá’í community. Then, without notice or discussion with his fellow Hands, he claimed the station of Guardianship, lacking explicit appointment by Shoghi Effendi as specified in the Will and Testament and in direct violation of the command of ‘Abdu’l-Bahá that no one could make such a claim. Exercising the authority conferred on them in accordance with ‘Abdu’l-Bahá’s Will, the Hands of the Cause expelled him from the Faith as a Covenant-breaker.

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In matters related to the Covenant, the friends must be firm and steadfast; they should be wary, lest the arguments put forward by those who sow seeds of doubt become the cause for confusion or lead to disputation and disunity. Should questions arise that cannot be resolved, they should be placed immediately before the Universal House of Justice. The friends must be especially careful to avoid being enticed by the whisperings of the remnants of the Covenant-breakers and their supporters, who seek to shake the believers’ faith. Whereas in the past the violators of the Covenant sought to undermine the authority of Bahá’u’lláh, ‘Abdu’l-Bahá and Shoghi Effendi, today they challenge the Universal House of Justice. Of particular concern are those who, as ‘Abdu’l-Bahá warns, “assert their firmness and steadfastness in the Covenant but when they come across responsive ears they secretly sow the seeds of suspicion.”

Remey’s small band of associates, bedevilled by half a century of infighting among competing factions, have had negligible effect on the progress of the Faith. The flurry caused by their actions does nothing more than shake a few lifeless twigs and leaves from the tree of the Cause. Those who are naïve, those who are not deepened in the Teachings or not firm in the Covenant, those who are controlled by their egos and lust for leadership can be misled and fall away. The friends are urged to protect themselves and their community by adhering strictly to the emphatic exhortations repeated throughout the Sacred Texts. As ‘Abdu’l-Bahá states,

Unto the Most Holy Book every one must turn and all that is not expressly recorded therein must be referred to the Universal House of Justice. That which this body, whether unanimously or by a majority doth carry, that is verily the Truth and the Purpose of God Himself. Whoso doth deviate therefrom is verily of them that love discord, hath shown forth malice and turned away from the Lord of the Covenant. By this House is meant that Universal House of Justice which is to be elected from all countries, that is from those parts in the East and West where the loved ones are to be found, after the manner of the customary elections in Western countries such as those of England....

And now, one of the greatest and most fundamental principles of the Cause of God is to shun and avoid entirely the Covenant-breakers, for they will utterly destroy the Cause of God, exterminate His Law and render of no account all efforts exerted in the past. O friends! It behooveth you to call to mind with tenderness the trials of His Holiness, the Exalted One, and show your fidelity to the Ever-Blest Beauty. The utmost endeavour must be exerted lest all these woes, trials and afflictions, all this pure and sacred blood that hath been shed so profusely in the Path of God, may prove to be in vain....

O ye beloved of the Lord! Strive with all your heart to shield the Cause of God from the onslaught of the insincere, for souls such as these cause the straight to become crooked and all benevolent efforts to produce contrary results.

The believers in the Cradle of the Faith, who have withstood for more than a century the onslaught of government and clergy, who triumphed over the perils posed by the rebellions of Azal and Muḥammad-‘Alí, who severed themselves from those who opposed Shoghi Effendi, will easily discount the spurious and ridiculous arguments of those few individuals who vie among themselves to exploit Remey’s deviation as a pretext for attracting a handful of personal followers. Be assured of our supplications at the Holy Threshold on behalf of the beloved friends everywhere in that sacred land.

With loving Bahá’í greetings,

[signed: The Universal House of Justice]